

## When Childhood Meets Crime

A criminal act committed by a child raises one of the toughest questions for any justice system. While the offence calls for accountability, we must also consider the offender's age. This tricky mix of law, morality, and human psychology shapes juvenile justice. The challenge for the Indian legal system is not just to decide whether a child has broken the law but to determine if justice should punish the mistake or leave room for reform. With more juveniles involved in cyber fraud, violent crimes, drug trafficking, and organised crime, this debate is more important than ever.

Juvenile justice differs from adult criminal law because it recognises that children are developmentally different. Their decisions often stem from immaturity, family issues, peer pressure, trauma, or social neglect instead of criminal intent. Acknowledging this difference, the *Juvenile Justice (Care and Protection of Children) Act, 2015* adopts a reformatory approach that focuses on rehabilitation rather than just punishment. The goal of the law is not to excuse criminal behaviour but to stop a child from becoming a lifelong offender by addressing the factors that led to the crime.

This belief is firmly established in the *Constitution of India*. *Article 15(3)* allows the State to create special provisions for children, understanding that true equality may require different treatment. *Article 21*, as interpreted by the Supreme Court, includes the right to live with dignity and applies even to children who run afoul of the law. Additionally, the *Directive Principles under Articles 39(e) and 39(f)* demand that the State to shield children from exploitation and promote their healthy development. These constitutional values reveal an important truth: a child who commits a crime is still a child. The Constitution expects the legal system to balance accountability with compassion, ensuring that punishment does not overshadow the chance for transformation.

However, the realities of modern India make this balance ever more challenging. Based on the latest *National Crime Records Bureau (NCRB)* data, 34,878 cases involving juveniles were registered in 2024, with over 42,000 juveniles apprehended. Although these numbers are alarming, we should not view them only as proof of rising criminal behaviour among children. They also highlight deeper societal problems like poverty, broken families, substance abuse, school dropouts, online radicalisation, cyber exploitation, and the increasing impact of social media. Juvenile crime usually does not arise in a vacuum; it often reflects the failure of institutions meant to protect childhood.

The national discussion on juvenile justice transformed significantly after the 2012 Delhi gang rape (*Nirbhaya*) case, where one of the accused was under eighteen. This case sparked a major public debate about whether the current laws effectively dealt with serious offences committed by older adolescents. In response, Parliament passed the *Juvenile Justice (Care and Protection of Children) Act, 2015*, bringing in notable reforms. Children aged sixteen to eighteen accused of serious offences may now undergo a preliminary assessment by the Juvenile Justice Board. This assessment evaluates their mental and physical capacity, understanding of their actions and consequences, and the circumstances surrounding the crime before deciding whether the case goes to a Children's Court.

The introduction of this preliminary assessment marked a significant shift in Indian juvenile law. It recognised that while childhood deserves protection, some offences may need a closer look at a juvenile's maturity and criminal responsibility. However, this provision also raises an important legal question: can we truly measure psychological maturity with certainty? The severity of an offence alone cannot determine whether a child has the same understanding or intent as an adult. Acknowledging this issue, the Supreme Court has consistently highlighted that treating a juvenile as an adult must be an exception, not the rule. A Children's Court cannot simply follow an adult trial; it must independently assess the findings of the Juvenile Justice Board and provide clear reasons before making such a decision. This judicial approach reinforces a key principle of the rule of law that justice must rely on evidence and reason rather than public anger.

Equally important is the fact that legislation alone cannot fix the problem of juvenile crime. The success of any justice system relies not only on the strength of its laws but also on the institutions that carry them out. Many Observation Homes and rehabilitation centres continue to struggle with shortages of trained psychologists, counsellors, educators, and vocational programs. Delays in inquiries, insufficient mental health support, inconsistent rehabilitation practices, and limited post-release monitoring often undermine the goal of reform. In today's digital age, these challenges are worsened by cybercrime, online grooming, organised criminal networks, and unrestricted access to harmful content, all of which require responses that go beyond traditional criminal law.

India must shift from a reactive approach to a preventive one. Strengthening juvenile justice needs investment in quality education, family counselling, mental health services, digital literacy, and community-based rehabilitation. Schools, parents, child welfare authorities, law enforcement, and civil society must work together as partners rather than as isolated groups. At the same time, rehabilitation should not mean a lack of accountability. Victims deserve justice, society needs protection, and children must have a chance to rebuild their future. A balanced legal framework must protect all three interests without letting one overshadow the others.

Ultimately, the discussion around juvenile justice is not a choice between compassion and punishment; it's about constitutional wisdom. A legal system that forsakes every child who makes a mistake risks creating lifelong criminals, while a system that overlooks the seriousness of severe offences may diminish public confidence in justice. The true strength of the Indian legal system lies in its ability to differentiate between youthful immaturity and real criminal responsibility through fair processes, informed judicial evaluation, and steadfast constitutional values. When childhood encounters crime, the law must do more than determine guilt. It must decide whether justice will punish the past or help create a better future. In that choice lies not only the future of the child but also the moral character of the nation.

## Reference

- *The Constitution of India*
- *Juvenile Justice (Care and Protection of Children) Act, 2015*
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